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Starting a case to establish non-parent visitation

HOW-TO

Chance of success

There are several questions to ask yourself before starting a visitation court case.

- Who are you filing a case against? Can they give you what you are asking for if you win the case?
- Why are you filing a case? Do you have enough information to support your side?

Costs of a court case

It costs time and money to file a case in court. Court cases may take several months and even a year or more to finish. Court cases often include:

- Fees to file your case, if you cannot get them waived
- Lawyer fees or your own time spent figuring out the court process and doing the paperwork
- Time spent in court, which may be time you have to take off work

Other options besides going to court

There are other options besides going to court that cost less and are faster.

- Settle: Come to an agreement with the other party on your own. You have more control over the outcome because a judge is not making the final decision.
- Mediation: Reach an agreement with the other party with the help of a neutral third party. The mediator does not decide what happens. The mediator helps you reach an agreement that is documented in a contract that both parties must follow.

1. Fill out your visitation forms

Fill out and sign a *Petition for Non-parent Visitation*, and make two extra copies of it.

If you do not have money to pay court fees, you should also fill out an *Application for Waiver of Court Fees*. This asks the judge to let you participate in the court case for free.

2. File your forms with the court

Now that you have filled out your forms, you need to file them with the appropriate circuit clerk. You will need to electronically file ("e-file") them unless you have an exemption.

Which circuit court you use depends on whether there is already a court case (such as a divorce or parentage case) involving the child you want visitation with.

- **If there is already a case:** You will have to file your petition, in that case, using the Case Number.
- **If there isn't a case yet:** You should file your petition in the court in the county where the child lives. If you file your petition in a county or circuit where the child does not live, the court may move the case.

3. Tell the other party about your case

After filing, you must serve the other party or parties a *Summons* and attach the *Petition* . Learn more about Serving a Summons. Do this by taking one copy of the *Petition* and the *Summons* to the Sheriff to have them serve the child's parent with the papers. Keep a copy of the *Petition* for your records.

You will have to wait until the parents are served with the *Petition* and *Summons*. You can call the clerk to find out when the petition and summons were served on the parents. If the sheriff cannot serve the parents, you will have to try to serve them again. You cannot move forward with the case until the parents are served.

4. Get a hearing date

After the parent is served, you need a court date.

How you will find out about the court date (or hearing date) and time depends on how you filed your case.

- E-filing: The website you used to electronically file may let you pick your court date (or hearing date) and time. If it does not, contact the clerk.
- Paper filing: If you filed in person at the courthouse, the clerk will let you pick, or they may pick for you.

Once you have a court date, fill out a *Notice of Hearing* and make two extra copies. Mail one copy to the parent, by regular mail. Keep one copy for your records.

After mailing the *Notice of Hearing* , fill out the *Proof of Mailing – Notice of Hearing*. Make one copy.

5. Go to the hearing

You should have received a court date and time from the circuit clerk. If you cannot find your court date and time, call the circuit clerk.

You have the right to represent yourself in court. However, you are expected to follow the court's rules and procedures. Most people who work in the courthouse cannot give you legal advice, meaning they cannot help you decide what to do, evaluate your chances of

success, or present your argument to the judge.

To navigate the court system, you need basic information about your case. Most of the information should be listed on court papers:

- Plaintiff's or Petitioner's name
- Defendant's or Respondent's name
- Case number
- Judicial circuit
- County
- Division

If you are filing a case, you are called the plaintiff. If a case has been filed against you, you are called the defendant. In some cases, the plaintiff is called the petitioner, and the defendant is called the respondent. For family law cases, there is no benefit to being the plaintiff/petitioner or defendant/respondent, it just indicates who filed the case and who they filed it against.

Bring these items with you to court:

- Copies of all the documents you filed with the Circuit Clerk,
- Any witnesses you want to testify,
- Any documents you want the judge to look at, and
- A photo ID.

Follow these suggestions when going to court:

- Be polite and dress the way you would for a job interview;
- Confirm in advance if the courtroom is operating by Zoom or in person;
- Get to the courthouse at least 30-45 minutes before your hearing time;
- Go to the courtroom number on your court forms. If your forms do not have a courtroom number, look for a list of cases at the courthouse or ask the circuit clerk;
- Check in with the judge’s clerk or coordinator sitting on either side of the judge’s seat;
- Know your line number and tell the clerk or coordinator your name and line number (you may have to sit outside the courtroom);
- Listen for your name or your line number to be called and then step up to the bench;
- Be prepared to swear to tell the truth and to answer questions truthfully;

- Explain briefly the issue you would like to address before leaving the courthouse;
- Listen for the court to tell you what will happen next, after hearing from you and the other side;
- Be prepared that some court dates are only for “status,” where the judge will get a very brief check-in about your case and usually will not make any final decisions;
- You should receive a copy of whatever order is entered that day. Don’t leave the courtroom without it.

At the hearing, you will have a chance to explain to the judge why you should get visitation with the child. Remember that there are several things you have to prove to get court-ordered visitation. If the parent shows up, the judge will also listen to why they think you should not get visitation with the child.

The judge might not make a decision that day. Typically, the first date you go to court after a motion is filed is called a “presentment” date, where you tell the judge what it is you’ve filed. Usually, judges will give the other side time to respond in writing before they make any decisions about the request. So, you should be prepared to come back to court multiple times.

Usually, in family law cases, there are motions filed during the case. Judges can make decisions on individual motions or make changes to things like the schedule before the case is resolved with a final order. You can request changes throughout the time the case is pending. However, you should be aware that additional filings may cause a delay in the final resolution of your case.

When the judge makes a decision, they will issue an order. Orders will be entered during the case at nearly every court date. At a minimum, they will include the next scheduled court date, but they can also include changes to the parenting arrangements.

At the end of the case, the judge will issue a final order. If you win, this is the legal document that gives you the right to visit the child. It will say when you get to spend time with the child and how. Keep a copy of this order for your records.

If this is your first time going to court, learn more about the process of going to court in Illinois.

6. Send a copy of the order to the child's parent

If the other parent does not come to court, and the judge signs an order giving you visitation rights, mail the parent a copy of the order by regular mail. If you have other contact information for the parent, such as email or phone number, it is a good idea to send them the order in these ways too.

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1 2 3 4 5

Worst Best

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